

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507533	DOE, AN INDIVIDUAL VS MIRAGE ENDOSCOPY CENTER, LLC., A CORPORATE ENTITY	MOTION BY DEFENDANTS MIRAGE ENDOSCOPY CENTER, LLC. AND MIRAGE ENDOSCOPY CENTER, LP TO REQUIRE PLAINTIFF TO BE NAMED AND TO STRIKE PSEUDONYM BY MIRAGE ENDOSCOPY CENTER, LLC., A CORPORATE ENTITY, MIRAGE ENDOSCOPY CENTER, LP, A CORPORATE ENTITY

Tentative Ruling: The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

CCP § 436(b) allows the court at any time in its own discretion or upon timely motion under CCP § 435 by a party, to strike a part of the pleading “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” This has been found to authorize “the striking of a pleading due to improprieties in its *form* or in the *procedures* pursuant to which it was filed.” (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) But this is “commonly invoked to challenge pleadings filed in violation of a deadline, court order, or requirement of prior leave of court.” (*Id.*) Mirage does not provide any authority establishing the right to strike the FAC based on what it argues is Plaintiff’s improper use of a pseudonym.

However, “[t]he names of all parties to a civil action must be included in the complaint.” (*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 109.) Due to “the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties’ identities confidential.” (*Id.* at 110.) “Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest.” (*Id.*)

When a plaintiff seeks to sue using a pseudonym, they are supposed to file their initial complaint conditionally using the pseudonym and then move for an order granting permission to proceed with the pseudonym. (*Department of Fair Employment & Housing, supra*, 82 Cal.App.5th at 111, fn. 1.) “If the request is granted, the initial pleading can remain. If pseudonym use is denied, the pleading must be amended to state the party’s

true name.” (*Ibid.*) “Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party’s request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access.” (*Id.* at 111.)

Motion to Strike is DENIED.

An Order to Show Cause re Use of Pseudonym is scheduled for July 28th, 8:30 a.m. Plaintiff directed to submit a brief addressing the rationale for permitting use of a pseudonym by July 17th. Defendant to file a response by July 23rd. No other briefing shall be permitted.

Case Management Conference is continued to 7.28.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508299	LARA-MARTINEZ VS UNIVERSAL CONSTRUCTION AND ENGINEERING, A CORPORATE ENTITY FORM UNKNOWN	MOTION TO STRIKE PORTIONS OF PLAINTIFFS FIRST AMENDED COMPLAINT

Tentative Ruling: No tentative ruling.

The hearing on the motion to strike is continued to 8.04.26. The parties are ordered to **meet and confer via in person, phone or videoconferencing** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the motion to strike. As part of the meet and confer process, Defendant shall identify the specific language that it believes is subject to the motion and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Defendant vacate the hearing on the motion to strike, and file an Answer;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- (3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve. (CCP §430.41(a)(3), CCP §435.5(a)(3).)

The court will not accept further briefing.